



Superior Court of California County of San Benito

Tentative Decisions for September 24, 2026

Courtroom #1: Judge J. Omar Rodriguez

CU-19-00212 Y.S., a minor vs. Hollister Unified School District et al

The unopposed Petition for Approval of Compromise is GRANTED as requested.

CU-24-00230 Avina, et al vs. State of CA Dept. of Transp., et al

Defendant Caltran's Motion to Augment Expert Witness List

Defendant's Motion to Augment its Expert Witness List is GRANTED. On motion of any party who has engaged in a timely exchange of expert witness information, the court may grant leave to a party to augment its witness list and declaration. (Code Civ. Proc. §2034.610(a)(1).) The motion "shall be made at a sufficient time in advance of the time limit for the completion of discovery under Chapter 8 (commencing with Section 2024.010) to permit the deposition of any expert to whom the motion relates to be taken within that time limit. "The court shall grant leave to augment or amend an expert witness list or declaration only if all of the following conditions are satisfied: (a) The court has taken into account the extent to which the opposing party has relied on the list of expert witnesses. (b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits." (Code Civ. Proc. §2034.620 subds. (a) and (b).) In addition, the court must find either that the moving party would not "in the exercise of reasonable diligence" have determined to call that expert witness (Code Civ. Proc. §2034.620 (c)(1)), or that the failure to call that expert witness was as a result of "mistake, inadvertence,

Page 1 of 7

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any objections or concerns.**